

iPad fever

Apple has sold more than 3 million iPads in the first 80 days since it hit the market



If you're facing a problem with your purchase, write to us at help@consumermate.com

BUYERS BE -AWARE

Shashank, a physically disabled person suffering from muscular dystrophy with great difficulty purchased an LG monitor from a reputed shop in Bangalore. Just two weeks thereafter when it was not switching on, he took it to the LG service centre and they said it's an imported monitor so they wouldn't be able to service it. Unable to understand that response, and despite the fact that the product was under warranty with a bill, he took it back to the shop from where he purchased it. The shop owner told him to leave the product with him for 10 days to find out as to what the warranty was all about. Later, all the seller had to say was that there was no warranty. The bill issued to him mentioned a box warranty, but on the box there was nothing mentioned about warranty at all. Finally, he was told by the service centre that the product is an imported one, therefore, he should speak to the company for a solution. The rest of the story is similar to what many of us face or might have faced after purchasing goods from reputed companies. The real question that we want to emphasise is not what should be done in such a situation, or what legal course we should adopt, but what we need to know to not let companies push us consumers around.

The role of a seller is more important than the manufacturer, as he enjoys profits from your purchase at his outlet. He has a legitimate duty to provide the best product with information beyond the advertisement and promotion of the product. A product purchased should be on the basis of description made by the seller and on the package or a display sign.

Anything contravening the promise made would amount to deficiency in service, which is a basic right. It is up to the seller to deal with complaints about defective goods or other failures to comply with your statutory rights under the Consumer Protection Act, 1986. So, do not accept the excuse "it's the manufacturer's fault". Your statutory

rights under the consumer protection Act, 1986 are additional to your rights under the manufacturer warranty.

If there is something wrong with what you buy, tell the seller as soon as possible preferably through a written mode via email or speed post or registered post. If you're unable to return to the shop or showroom within a few days of making the purchase, it's a good idea to call the shopkeeper and let him know about your complaint. Make a note of the conversation and to whom you spoke to.

The products you purchase should be of acceptable quality. They must meet the standard that a levelheaded person would consider as acceptable bearing in mind the way they were described, (especially by the seller), what they cost and any other relevant circumstances. This covers, for instance, the appearance and finish of the goods, their safety, and their durability, warranty and guarantee. Goods purchased must be free from defects, even minor ones.

You may be able to claim compensation if you suffer loss because of faulty goods. For example, if a faulty iron ruins your clothes. Likewise, Shashank can always claim compensation from the seller and the manufacturer for the loss incurred due to loss of business and time due to the faulty monitor.

Remember, rights under a warranty are in addition to your other statutory consumer rights granted under Consumer Protection Act, 1986. A warranty doesn't affect your legal right to reject a product that was faulty when you bought it and get your money back. But to avail this, don't delay your complaint for too long. 

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COMPLAINTS RECEIVED

Laptops

Case File #125

Facing problems with my Compaq laptop

My cousin bought a Compaq Presario v3225au two years back. He used it occasionally. I'm a student and used it more. Now I'm facing a problem of an irregular display. I came to know this series of notebooks have problems with the motherboard (phoenix). Can a company this big manufacture defective products? I'm also facing a severe heating problem. Kindly help me

Naresh Reddy

Answer by Consumermate

Dear Naresh,
You haven't mentioned about the warranty standing of your product. Legally speaking, there's no point in complaining about heating and other problems a few years after the warranty has expired. Once the warranty is over, the consumer is really helpless over product deficiencies. We suggest you get in touch with like-minded consumers facing the same problems. Thereafter you can pursue the matter collectively with the company to make an impact.

Case File #145

Dealer did not provide Dell Laptop carrying case

Recently I purchased a new Dell laptop from a dealer in Aurangabad, Maharashtra. The laptop costs around Rs. 37,000, but Dell has not even bothered to provide a good leather carrying case. I want a detailed and thorough investigation into the matter. Dell has not even provided their email ID to customers.

Prasad Deshpande

Answer by Consumermate

Mr. Prasad,
It entirely depends upon the scheme of the company and the final offer made by the dealer to you. You can write to the company asking for the current scheme. Once you get positive information from the company, thereafter you can file the complaint in the consumer forum asking for damages for the omission.